

tain a three-judge court." 381 U. S., at 5-6. See also *Florida Lime Growers v. Jacobsen*, 362 U. S. 73 (1960); *Allen v. Grand Central Aircraft Co.*, 347 U. S. 535 (1954). The complaint in this case falls within that rule.

Thus, since the three-judge court was properly convened below,⁴ direct appeal to this Court is proper. We turn now to the standing question presented by this case.

II.

This Court first faced squarely⁵ the question whether a litigant asserting only his status as a taxpayer has standing to maintain a suit in a federal court in *Frothingham v. Mellon*, *supra*, and that decision must be the starting point for analysis in this case. The taxpayer in *Frothingham* attacked as unconstitutional the Maternity Act of 1921, 42 Stat. 224, which established a federal program of grants to those States which would undertake programs to reduce maternal and infant mortality. The taxpayer alleged that Congress, in enacting the challenged statute, had exceeded the powers delegated to it under Article I of the Constitution and had invaded the legislative province reserved to the several States by the Tenth Amendment. The taxpayer complained that the result of the allegedly unconstitutional enactment would be to increase her future federal tax

⁴ An additional requirement for the convening of a three-judge court is that the constitutional question presented be substantial. See *Idlewild Bon Voyage Liquor Corp. v. Epstein*, 370 U. S. 713 (1962); *Ex parte Poresky*, 290 U. S. 30 (1933). The Government does not dispute the substantiality of the constitutional attack made by appellants on the Elementary and Secondary Education Act of 1965. See *Flast v. Gardner*, 267 F. Supp. 351, 352 (1967).

⁵ In at least three cases prior to *Frothingham*, the Court accepted jurisdiction in taxpayer suits without passing directly on the standing question. *Wilson v. Shaw*, 204 U. S. 24, 31 (1907); *Millard v. Roberts*, 202 U. S. 429, 438 (1906); *Bradfield v. Roberts*, 175 U. S. 291, 295 (1899).